

[REDACTED]

[REDACTED] **INVESTMENT AGREEMENT**

Date: [REDACTED]

[REDACTED]

Project ID: [REDACTED]

Project Title: [REDACTED]

Designated Development Partner: The University of Auckland

Investment Amount: [REDACTED]

Investment Period: [REDACTED]

Dear Dr. [REDACTED]

The [REDACTED] (the “[REDACTED]”) is pleased to award the collaboration partners whose members are identified on Schedule A hereto (collectively, the “Collaboration Partners” and each, a “Collaboration Partner”) an investment in the aggregate amount of ¥ [REDACTED] (the “Investment”) for the project titled “[REDACTED]” (the “Project”), subject to the terms and conditions set forth in this investment agreement (this “Investment Agreement”). The Investment is awarded for the period beginning on the date the [REDACTED] signs this Investment Agreement (the “Effective Date”) and expiring on [REDACTED], or such earlier date on which this Investment Agreement is terminated (the “Investment Period”), subject to the terms and conditions set forth herein.

1. Collaboration Partners

The terms of this Investment Agreement shall be binding on and enforceable against, and inure to the benefit of, each Collaboration Partner. The Collaboration Partners hereby nominate the University of Auckland (the “Designated Development Partner”) as the representative funding recipient and the partner acting on behalf of the Collaboration Partners vis-à-vis the [REDACTED] and represent that the Designated Development Partner has the capacity to discharge its role and duties hereunder. The Designated Development Partner is responsible for the performance of the Project and for each Collaboration Partner’s compliance with the terms of this Investment Agreement as provided herein, without absolving each Collaboration Partner from its obligations and duties hereunder.

No Collaboration Partner may select any subcontractor (except for any subcontractors that have been identified as such in the Project Proposal (as defined below)) to assist with the Project without the [REDACTED] prior written consent.

2. Separate Agreements with Collaboration Partners or Third Parties

Prior to receiving funding of any portion of the Investment, the [REDACTED] requires that a separate contractual relationship be entered into among the Collaboration Partners, including the Designated Development Partner, and in certain cases, the [REDACTED] may require that a separate contractual relationship be entered into between any or all of the Collaboration Partners and a third party in connection with the Project (any such agreement, the “Collaboration Agreement”). Such Collaboration Agreement shall be subject to the reasonable approval of the [REDACTED]. The Collaboration Partners, including the Designated Development Partner, may not start the use of the Investment before obtaining such approval. The [REDACTED] may request the Collaboration Partners, including the Designated Development Partner, to amend the Collaboration Agreement as the [REDACTED] in its good faith discretion deems necessity arises during the course of the Investment Period.

The Collaboration Agreement shall specify that, all product pricing and licensing conditions related to products developed pursuant to the Project (each such product, a “Product”) comply with the Data Access Policy and the Product Access Policy (as defined below), and all packages, communications and publications related to each Product, including, but not limited to, product brochures, pamphlets, posters, presentations, website, annual reports and CSR reports (“Marketing Materials”), shall indicate that such Product was developed in partnership with the Collaboration Partner headquartered in Japan by using such Japanese Collaboration Partner’s logo to the extent permitted under applicable regulations.

Moreover, the Collaboration Agreement shall specify that, at any time during the Investment Period or after the Investment Period, the [REDACTED] and the Designated Development Partner may conduct audits or review of any of the Collaboration Partners’ financial and other records and materials for the purpose of reviewing the use of the Investment (for the avoidance of doubt, including any portions that have been distributed by a Collaboration Partner, including the Designated Development Partner, to such Collaboration Partner; hereinafter the same) by any of the Collaboration Partners, their compliance with the Investment Agreement and the Collaboration Agreement, and their performance with the Project, and that the Collaboration Partners shall make available to the [REDACTED] and the Designated Development Partner for such audits or review any and all records, evidences, documents and materials maintained by the Collaboration Partners at any time upon request by the Designated Development Partner pursuant to Sections 18 (“Record Maintenance and Inspection”) and 20 (“Evidence, Documents, and Materials to be Maintained”) of this Investment Agreement.

The Collaboration Agreement and the arrangements contemplated thereby must be maintained for at least the entire Investment Period or so long as the relevant provisions contained in this Investment Agreement continue and survive the expiration or termination of this Investment Agreement. The Designated Development Partner, and not the [REDACTED] is fully responsible

for ensuring that all Collaboration Partners use the Investment consistent with this Investment Agreement and the Project proposal attached hereto as Exhibit A (the “Project Proposal”); for such ensurance, the Designated Development Partner shall diligently review the actual work and progress of the Project and review all relevant documents and other evidence of each Collaboration Partner.

3. Indemnification

The Collaboration Partners agree, joint and severally, to indemnify, defend and hold harmless the [REDACTED] and its members (councils), directors, supervisory board members, ex-officio observers, officers, employees, committee members, advisors and agents (the “Indemnified Parties”) from and against any and all demands, claims, actions, suits, losses, damages (including property damage, bodily injury, and wrongful death), arbitration and legal proceedings, judgments, settlements, or costs or expenses (including reasonable attorneys’ fees and expenses) arising out of, resulting from, or in connection with the Investment or the Project, including without limitation, (a) the acts or omissions, actual or alleged, of any of the Collaboration Partners or any of their respective directors, statutory auditors, officers, agents, employees, contractors or subcontractors with respect to any activities involved in the Project, such as clinical trials involving human subjects, post-approval studies, field trials involving genetically modified organisms, experimental medicine and the provision of medical/health services, (b) any actual or alleged breach of this Investment Agreement by any of the Collaboration Partners, (c) any negligence or misconduct by any of the Collaboration Partners or any of their respective directors, statutory auditors, officers, agents, employees, contractors or subcontractors with respect to the Project, (d) the marketing, distribution, sale, licensing or use of any products developed under the Project, or (e) any other activities of the Collaboration Partners related to the Project, except, in each of the foregoing clauses (b) through (e), to the extent that any such claim, loss, cost or damages is attributable to any gross negligence or willful misconduct by the [REDACTED]

The Collaboration Partners agree that any activities by the [REDACTED] in connection with the Project, such as its review or proposal of suggested modifications to the Project, will not affect or waive the [REDACTED] rights under this section.

4. Funding and Use of the Investment

The Investment may be used by the Collaboration Partners solely for the Project in accordance with the Budget as defined below. Any portion of the Investment unused or uncommitted at the end of the Investment Period must be promptly returned to the [REDACTED] and the return of any such portion of the Investment upon an early termination of the Investment Period will be as provided in Section 29 (“Termination”) of this Investment Agreement. Any amounts not used properly in accordance with the Budget for the Project shall be promptly reimbursed to the [REDACTED] upon its written request.

The Designated Development Partner submitted a detailed, categorized budget outlining the projected expenditures for the Project attached hereto as a part of the Project Proposal (such

approved budget, the “Budget”). Only immaterial changes may be made to the projected expenditures for any budget category without the [REDACTED] approval, and under all circumstances, changes of ten percent (10%) or more or amounting to more than [REDACTED], whichever is larger, to the projected expenditures for any budget category must be approved in writing by the [REDACTED] in advance of such expenditures. The Designated Development Partner and the Collaboration Partners may not use the Investment to reimburse expenses incurred prior to the Effective Date.

The Designated Development Partners shall ensure that the Collaboration Partners shall use the Investment strictly in accordance with the preceding 2 paragraphs.

5. Preservation of the Investment

The Investment must be placed in a segregated account with an accredited credit-worthy financial institution (subject to [REDACTED] reasonable approval) and invested in highly-liquid and investment grade investments (such as interest-bearing bank accounts) with the primary objective of preservation of principal so that it is available for the Project. Monthly statements of the account shall be provided by the financial institution to [REDACTED]. Withdrawal from the account shall be made as needed in accordance with the Budget. Any interest earned or earnings on the Investment funds must be used for the Project. At the end of the Investment Period, any remaining principal and earned interest must be returned to the [REDACTED] unless the [REDACTED] agrees in writing to allow such remaining principal and/or interest to be applied to another project funded by the [REDACTED]. Currency conversion of Investment funds is the sole responsibility of the Designated Development Partner. The [REDACTED] is not responsible for investment or currency conversion losses. The Designated Development Partner must report to the [REDACTED] the amounts of (a) any interest or other income earned or generated by Investment funds, (b) any currency conversion gains or losses and (c) any other transaction fees.

6. Transparency and Fairness

To ensure and enhance organizational transparency and fairness in the decision-making for [REDACTED] awards, each Collaboration Partner represents that it has not, and covenants that it shall not, contact (a) recipients of, or candidates for, other [REDACTED] awards or (b) Selection Committee members regarding queries, concerns, and requests related to [REDACTED] funding. All communications by the Collaboration Partners intended for such parties must be directed to the [REDACTED] Management Team.

7. Political Activities

The Investment may not be used to influence the outcome of any election for public office or to carry out any voter registration drive. There is no agreement, oral or written, permitting the Investment to be directed to or earmarked for lobbying activities or other attempts to influence local or national legislation in any jurisdiction. The Collaboration Partners’ strategies and activities, and any materials produced in connection with the Investment or the Project will comply with applicable local and national lobbying laws of all relevant jurisdictions. The

Collaboration Partners shall not offer or provide money, gifts or any other thing of value, directly or indirectly, to anyone in order to improperly influence any act or decision relating to the [REDACTED] the Investment or the Project, including by assisting any party to secure an improper advantage, and agree that they will comply with lobbying, gift and ethics rules applicable to the Investment and the Project under local and national laws in each relevant jurisdiction.

8. Anti-Terrorism

Each Collaboration Partner represents that it has complied with, and covenants that it shall comply with, all applicable laws and regulations prohibiting the provision of resources and support to individuals and organizations associated with terrorist or anti-social groups in Japan or internationally, including, without limitation, under any economic sanctions or trade embargoes administered or imposed by the Office of Foreign Assets Control of the U.S. Department of Treasury, the U.S. Department of State, the United Nations Security Council, the European Union, Her Majesty's Treasury or any other relevant authority. Each Collaboration Partner represents that it has not, to the best of its knowledge, directly or indirectly supported or promoted, and covenants that it shall use reasonable efforts to ensure that they do not directly or indirectly support or promote, such terrorist or anti-social activities or related training, or money laundering in Japan or elsewhere.

9. Anti-Corruption

Each Collaboration Partner represents that neither it nor any of its subsidiaries, its and its subsidiaries' directors, statutory auditors, officers, employees or agents (collectively, the "Representatives") have taken, and covenants that it shall not take, and shall ensure that each of its Representatives shall not take, any action in furtherance of an offer, payment, promise to pay, or authorization or approval of the payment or giving of money, property, gifts or anything else of value, directly or indirectly, to any government official in Japan or any other jurisdiction to influence official action or secure an improper advantage. The Collaboration Partners and all of their subsidiaries have conducted their businesses in compliance with applicable anti-corruption laws, including, without limitation, the principles set out in the Organization for Economic Cooperation and Development Convention on Combating Bribery of Foreign Public Officials in International Business Transactions, the U.S. Foreign Corrupt Practices Act of 1977, as amended, the U.K. Bribery Act 2010 and Article 18 of the Unfair Competition Prevention Act of Japan, and the rules and regulations promulgated thereunder.

10. Compliance with Applicable Law

In carrying out the Project, each Collaboration Partner will, and will ensure that its respective directors, statutory auditors, officers, agents, employees, advisors, representatives, contractors and subcontractors will, (i) comply with all applicable laws, regulations, and rules ("Applicable Law") and (ii) not infringe, misappropriate, or violate the intellectual property, privacy or publicity rights of any third party. In the event that a Collaboration Partner becomes aware of any non-compliance, then it shall promptly notify the [REDACTED] and specify the details and its measures to comply.

11. Compliance with Requirements

The Collaboration Partners agree to conduct, control, manage and monitor the Project in compliance with all applicable ethical, legal, regulatory and safety requirements, including applicable international, national, local and institutional standards (“Requirements”). The Collaboration Partners agree to obtain and maintain all necessary approvals, consents and review before conducting the applicable activity. In each Progress Report (as defined below), the Designated Development Partner must report whether the Project activities were conducted in compliance with all Requirements.

If the Project involves:

- (a) any protected information (including personally identifiable, protected health or third-party confidential), the Collaboration Partners agree not to disclose this information to the [REDACTED] without obtaining the [REDACTED] prior written approval and all necessary consents to disclose such information;
- (b) children or vulnerable subjects, the Collaboration Partners agree to obtain any necessary consents and approvals unique to these subjects; or
- (c) any trial involving human subjects, the Collaboration Partners agree to adhere to current “Good Clinical Practice” as defined by the International Council on Harmonization (ICH) E-6 Standards (or local regulations if more stringent) and to obtain applicable trial insurance.

The Collaboration Partners agree that any activities by the [REDACTED] in reviewing documents and providing input or funding do not modify any Collaboration Partner’s responsibility for determining and complying with all the Requirements for the Project. In addition, documentation of research results should be consistent with applicable regulations and applicable international, national, and local standards regulating the corroboration of dates of invention and reduction to practice with respect to inventions.

The Collaboration Partners acknowledge that nothing in this section shall limit the obligations of any Collaboration Partner under Sections 12 (“Insurance”) and 24 (“Ethics Approval”) of this Investment Agreement.

12. Insurance

Each Collaboration Partner will maintain insurance coverage sufficient to cover the activities, risks and potential omissions of the Project in accordance with generally accepted industry standards and as required by law. Each Collaboration Partner will ensure that its subcontractors will maintain insurance coverage consistent with this section.

13. Reliance

The Collaboration Partners acknowledge that the [REDACTED] is relying on the information the Collaboration Partners provide in reports and during the course of any due diligence conducted prior to the Effective Date and during the term of this Investment Agreement. Each Collaboration Partner covenants that it will take reasonable steps to ensure that any information

provided to the [REDACTED] regarding the activities and progress of the Project is accurate and complete, and in the event that a Collaboration Partner becomes aware that any information previously provided to the [REDACTED] is not accurate and complete, such Collaboration Partner shall promptly correct or supplement such incorrect or incomplete information.

14. Travel Stipends

The Designated Development Partner shall have the exclusive right and sole discretion to determine whether individuals affiliated with the Collaboration Partners are eligible to receive travel stipends and conference attendance subsidies in connection with Project activities and shall make such determinations independently of the [REDACTED]. The employees of the [REDACTED] are not eligible to receive travel stipends or conference expense reimbursements using the Investment.

15. Payments and Reports

Subject to the terms and conditions of this Investment Agreement, the [REDACTED] will make the investment payment(s) to the Designated Development Partner as shown in the schedule attached as Exhibit B. All payments will be in Japanese Yen (¥). The second payment, if applicable, will be made following the [REDACTED] review of the second Progress Report submitted pursuant to this Investment Agreement or any other report demonstrating to the satisfaction of the [REDACTED] that the contemplated activities and milestones for Year 1 of the Project have been successfully completed, unless otherwise stated. Notwithstanding anything to the contrary herein, the [REDACTED] may, in its sole discretion, authorize changes to the payment and reporting schedules from time to time. The [REDACTED] will confirm any such changes in writing. The [REDACTED] will assess progress against the Project plan and based on this assessment may determine that amendments to this Investment Agreement are required as a prerequisite to receiving additional payments. The [REDACTED] reserves the right to conduct in-person progress meetings if the [REDACTED] in its sole discretion deems such progress meetings necessary or advisable for investment oversight. The Project staff of the Collaboration Partners will be provided reasonable advance notice of such in-person meetings.

16. Milestones and Activities

The following table shows the [REDACTED] monitored milestones and activities for the Investment based on the Project Proposal. Annual payments are contingent on the Collaboration Partners satisfying the listed milestones and activities based on the criteria for advancement. Each Progress Report should include milestone and activity status updates. For a report to be satisfactory, the Designated Development Partner must demonstrate meaningful progress towards the milestones and activities contained in this Investment Agreement and the Project Proposal. The Collaboration Partners must undertake the Project as described in the Project Proposal and may not materially modify any activities or milestones described in the Project Proposal without the [REDACTED] prior written consent.

17. Reporting Procedures

The Designated Development Partner is required to submit semi-annual reports (each, a “Project Report”), in accordance with the reporting and payment schedule attached as Exhibit B, regarding the expenditure of Investment funds and the progress on the Project. Each Project Report shall record all expenditure by all Collaboration Partners on an itemized basis in the form separately provided by the [REDACTED] (the “Itemized Expenditure Reporting Form”). The Progress Report templates (including the Itemized Expenditure Report Form) and submission guidelines will be provided by the [REDACTED], subject to any change as notified by the [REDACTED] in its sole discretion to the Designated Development Partner in writing reasonably in advance. Each Progress Report should be submitted electronically to the [REDACTED] in accordance with the instructions shown in each template. The Designated Development Partner also agrees to submit such other reports as the [REDACTED] may reasonably request. The [REDACTED] reserves the right to demand interim status and other reports at any time.

18. Record Maintenance and Inspection

Each Collaboration Partner shall maintain full and accurate accounting records and the related evidence, documents and materials for the Project to enable the [REDACTED] to easily examine

how the Investment was expended and the activities of such Collaboration Partner for the Project. Each Collaboration Partner's books and records for the Project must be made available for inspection or review by the [REDACTED] or its designees at any time upon request to permit the [REDACTED] to monitor and evaluate the operations related to the Investment.

19. Audit Rights and Requests for Information

At any time during the Investment Period or after the Investment Period, the [REDACTED] may conduct audits of any of the Collaboration Partners' financial and other records and materials for the purpose of reviewing the use of the Investment by any of the Collaboration Partners, their compliance with this Investment Agreement, and their performance in connection with the Project. The Designated Development Partner and the Collaboration Partners shall bear the cost for such audits conducted by the [REDACTED] (including those conducted by the designees and agents of the [REDACTED] if the [REDACTED] in its good faith discretion deems such audits are warranted.

Following the end of the Investment Period and prior to the launch of any Product, the [REDACTED] may request documentation and materials held by the relevant Collaboration Partner(s) related to licensing for, and sales of, the Product (the "Product Documents"). Such Collaboration Partner(s) shall respond to any such request by the [REDACTED] as soon as commercially reasonably practicable prior to the launch.

Following the launch of the Product and until the Product is no longer commercially available, the [REDACTED] shall have the right to request, periodically every two (2) years or upon [REDACTED] request, that the relevant Collaboration Partner(s) produce the Product Documents in order to confirm such Collaboration Partner(s)' compliance with this Investment Agreement, including, without limitation, that such products adhere to the [REDACTED] Data and Product Access Policies (as defined below). Such Collaboration Partner(s) shall respond to any such request by the [REDACTED] within twenty (20) business days of the receipt of the request.

In any of the foregoing cases, the relevant Collaboration Partner(s) shall fully respond to the [REDACTED] questions regarding the Product Documents and provide further documentation as reasonably requested by the [REDACTED] in a manner reasonably satisfactory to the [REDACTED]

20. Evidence, Documents and Materials to be Maintained

Per Sections 18 ("Record Maintenance and Inspection") and 19 ("Audit Rights and Requests for Information") of this Investment Agreement, the [REDACTED] requires all Collaboration Partners to maintain during the Investment Period and after the Investment Period for a period of at least 5 years, all evidences, documents and materials related to the Project as are necessary to enable the [REDACTED] to audit and examine whether expenditures are in compliance with this Investment Agreement, including, but not limited to, the following:

- Personnel Compensation: copies of paychecks and any other documents as are necessary to confirm personnel compensation including any applicable fringe benefits.

- **Contractor Costs:** the executed original of the contract with non-employees, contractors, consultants, temporary contracted personnel, or contracted organizations for the Project, copies of paychecks, the original receipts and any other documents confirming amounts paid and confirming the completion of the work or the business specified in the contract.
- **Materials and Supplies:** the original invoice and/or the original receipt and any other documents specifying the details of items purchased for the Project.
- **Travel and Accommodations:** the original invoice and/or the original receipt for accommodation expenses and travel expenses (including airfare, train, taxi and car rental).
- **Administrative Expenses:** the original invoice and/or the original receipt for the cost of heating, electricity, water, communications, printing, photocopying, shipping, publishing and similar expenses. Note that the administrative labor costs should be included in the indirect costs.
- **Others:** the original invoice and/or the original receipt for expenses such as conference registration, legal fees, ethics review fees and so on.

For the avoidance of doubt, maintaining any agreement between the Designated Development Partner and another Collaboration Partner as the sole evidence for any expenditure by such Collaboration Partner will not satisfy such Collaboration Partner's record keeping obligations under this Section 20.

21. Internal and Third-Party Audit

If any Collaboration Partner is audited by its internal audit department or by a third party covering any part of the Investment Period relating the Project or the Investment, such Collaboration Partner will provide the audit report to the [REDACTED] upon request, including the management letter and a detailed plan for remedying any deficiencies observed (the "Remediation Plan"). The Remediation Plan must include (a) details of actions the Collaboration Partner will take to correct any deficiencies observed, and (b) target dates for successful completion of the actions to correct the deficiencies.

22. Evaluation

The Designated Development Partner agrees to inform the [REDACTED] of any research or evaluation of the Project that is conducted by any third party, and to provide the [REDACTED] with a copy of any report or findings from such research or evaluation. The [REDACTED] or its evaluation partner will notify the Designated Development Partner in writing of the Project's inclusion in any research project undertaken by the [REDACTED]. If the Project is selected to participate in a third-party evaluation sponsored by the [REDACTED] the Collaboration Partners agree to: (a) facilitate the [REDACTED] evaluation partner's implementation of an evaluation plan; (b) identify an on-site evaluation coordinator who will serve as a contact; (c) facilitate the collection of data; and (d) permit the [REDACTED] to disseminate the results of the evaluation. The [REDACTED] evaluation partner will provide appropriate privacy and other protections to

participants regarding confidentiality, and the participating Collaboration Partners may request such evaluation partner to sign a separate confidentiality agreement if deemed necessary by the participant.

23. Global Access

The Project, and the technologies and information arising from the Project, will be conducted and managed consistent with the [REDACTED] charitable purpose of ensuring “Global Access” as contemplated by the [REDACTED] Data Access Policy and Product Access Policy [REDACTED], which may be amended from time to time, and which terms and conditions are incorporated hereto (the “Data and Product Access Policies”). “Global Access” requires that (a) the knowledge related to the safety and efficacy of healthcare technologies gained during the Project be promptly and broadly disseminated and (b) the intended product(s) be made available and accessible at a reasonable cost to people most in need within developing countries.

Collaboration Partners are obliged to develop a Launch Strategy Plan (“LSP”) guided by the GHIT Launch Strategy Template as stated in the Implementation Section of the Data and Product Access Policies. The initial LSP shall be presented to the [REDACTED] for its approval within 1 fiscal year from the time of signing the Investment Agreement (or another date agreed to by the [REDACTED] at the time of signing). The LSP shall be included and monitored as a key milestone as stated in Section 16 above and reviewed annually in line with project progress reporting procedures stated in Section 17, where appropriate.

Respect must be given to individuals and communities from or about whom data are collected. Respect must also be given to all matters of confidentiality and attribution. In furtherance of the foregoing, any data shared or published should be anonymized and all efforts made to ensure that such data does not contain any identification characteristics as they pertain to patients, researchers, evaluators, and their collaborators. Confidentiality and respect for such should be fully recognized where required by law or regulation, or where otherwise necessary or appropriate.

All existing data and findings owned by the Collaboration Partners at the initiation of the Project, including but not limited to information, know-how, technology, or background intellectual property (IP), will remain the property of the original holder. Such pre-existing data and findings should be clearly identified and disclosed by such product development partner, at the time of signing of the Investment Agreement, to clearly distinguish such data and findings from the new data and findings generated with GHIT funding. The original holder may share, assign, or license their rights to any such pre-existing data and findings to a third party.

Ownership of all new data and findings that are obtained or created using the Investment or otherwise through activities funded by the [REDACTED] and that can be applied for any intellectual property rights, including but not limited to information, know-how, technology, or foreground intellectual property (IP), will be discussed, and negotiated between the Collaboration Partners and the [REDACTED] and/or product development partners of a project. All final agreements with respect thereto shall be consistent with the licensing and pricing principles of the Data and Product Access Policies.

Any existing data and other data included in issued patents owned by the Collaboration Partners and/or any new data obtained using the Investment or otherwise through activities funded by the [REDACTED] may be disclosed by the [REDACTED] to a third party if such data is used in a patent application for a product which was derived from the activities funded by the [REDACTED] and such use has been agreed by the applicable Collaboration Partner.

In the case of licensing-out data or products funded by [REDACTED] each Collaboration Partner shall use the patents to facilitate equitable access, including, but not limited to, voluntary licensing with a broad geographical scope, royalty-free licenses and/or patent pooling, to users operating in Least Developed Countries (LDCs) as categorized as such by the United Nations classification and Low-Income Countries (LICs) categorized as such by the World Bank classification. License-related matters concerning middle income countries will be reviewed on an individual basis with the goal of ensuring access, equity, and affordable prices. In LDCs, LICs and middle-income countries, each Collaboration Partner will cause its respective licensee(s) or sub-licensee(s) to set affordable prices for products based on a “no gains/no loss” policy that allows for a reasonable margin of profit but also ensures affordability of the products for the intended communities, specifically in LDCs, LICs and middle-income countries.

The Collaboration Partners will make the safety and efficacy results of the Project or other publications regarding the Project funded by the Investment available to the public. The Collaboration Partners will seek prompt publication of any such data and results generated from the Project in a peer-reviewed journal or trade publication, as applicable. Such publication may be delayed for a reasonable period for the sole purpose of seeking patent protection, provided the patent application is drafted, filed and managed in a manner that best furthers the charitable purpose of the Investment. The Designated Development Partner will also use good faith efforts to ensure that Collaboration Partner(s) likewise seek prompt publication of any such data and results generated from the Project. The Collaboration Partners will cite all actual or pending publications in each Progress Report.

The Collaboration Partners’ Global Access obligations regarding Project technologies and information will survive the Investment Period.

24. Ethical Approval

If the Project involves clinical trials, the Collaboration Partners agree that the appropriate Institutional Review Boards (“IRBs”) and/or Independent Ethics Committees (“IECs”) will review and approve the clinical protocols prior to trial initiation.

Further, any clinical trials involving (a) animals (which, for the purpose of this section means live, vertebrate animals) will require approval from the Institutional Animal Care and Use Committee, and (b) biohazards and recombinant DNA will require approval of the Institutional Biosafety Committee.

The Collaboration Partners agree that no human or animal subjects will be enrolled in any research project subject to IRB or IEC approval until such approval has been obtained for each project site and notification to that effect has been provided to the [REDACTED]. The Designated Development Partner agrees to provide prompt notice to the [REDACTED] if the facts and circumstances of the Project change regarding the approval status of the IRBs or IECs for any final protocol(s).

The Designated Development Partner agrees to be responsible for the humane care and treatment of animals in projects supported in part or whole by the Investment, and to adhere to the official guidelines for animal research applicable in the country and locality where the Project is being conducted. No funds provided under this Investment Agreement may be expended on studies involving animals until all requisite approvals are in place and notification to that effect has been provided to the [REDACTED].

In the case of multi-national collaborations, the standards of each relevant jurisdiction may be followed in that jurisdiction, provided that (a) differences between such standards do not interfere with the design and analysis of the Project, and (b) regulations in the relevant institution and host country jurisdiction do not conflict with the management of the Project.

The Collaboration Partners also agree to conduct clinical trials associated with the Project under the generally accepted principles of “Good Clinical Practices” as defined in the Ministerial Order Concerning the Standards for the Implementation of Clinical Trials on Pharmaceutical Products issued by the Ministry of Health, Welfare and Labor of Japan, the International Conference on Harmonization (ICH) E-6 Standard, the United States Food and Drug Administration (FDA) or the European Medicines Agency (EMA), as applicable. In keeping with “Good Clinical Practice” standards, the Designated Development Partner will cause the Collaboration Partners to disclose to human subjects and the IRBs/IECs what care and/or referrals will be available through participation in the study.

25. Exclusion of Liability

Each Collaboration Partner agrees that any activities by the [REDACTED] as the grantor funding the Project, including its review of the Proposal or modifications to the Project, shall not constitute the basis for any claim by any Collaboration Partner against the [REDACTED].

26. Publicity

The [REDACTED] may make information on this Investment public at any time on its web page and as part of press releases, public reports, speeches, newsletters, and other public documents. The [REDACTED] will use the term “co-development” to describe how the Collaboration Partners are working together to discover and develop the new technology.

Each Collaboration Partner must obtain the [REDACTED] prior written approval before: (a) issuing a press release or other public announcement regarding the Investment and (b) any other public use of the [REDACTED] name or logo. The Collaboration Partners should contact the [REDACTED] at [REDACTED] at least two (2) weeks in advance to provide the [REDACTED] an opportunity to review and comment.

27. Marketing Materials

The Marketing Materials shall indicate that the Product was developed in partnership with the Collaboration Partner headquartered in Japan by using such Japanese Collaboration Partner's logo to the extent permitted under applicable regulations.

Each Collaboration Partner agrees to use commercially reasonable efforts to cause its licensee(s) or sub-licensee(s) to: (a) include, to the extent permissible under Applicable Law, the [REDACTED] name and/or logo in the Marketing Materials; and (b) prior to making such Marketing Materials publicly available, consult with the [REDACTED] and implement the [REDACTED] reasonable requests with respect to the usage of the [REDACTED] name or logo in such Marketing Materials.

28. Confidentiality

Each Collaboration Partner agrees to keep confidential, and not disclose to any person, any of the terms of this Investment Agreement or any discussion or negotiation thereof (collectively, the "Confidential Information") (other than disclosure to such party's affiliates or such party's or any of its affiliates' employees, agents, advisors, or representatives as reasonably necessary, such affiliates and each such person being hereinafter referred to as an "Authorized Representative"); provided, that such party and its Authorized Representatives may make disclosures to the extent that:

- the Confidential Information is being disclosed in accordance with the terms of any of Sections 23 ("Global Access"), 26 ("Publicity") or 27 ("Marketing Materials") of this Investment Agreement.
- the Confidential Information being disclosed is publicly known other than as a result of a disclosure by such party or Authorized Representative in violation of this Investment Agreement at the time of disclosure by such party or Authorized Representative; or
- such disclosure is required by Applicable Law.

Prior to making any disclosure required by Applicable Law, to the extent practicable and permitted by Applicable Law, the relevant Collaboration Partner shall notify the other parties to this Investment Agreement. Prior to any disclosure to any Authorized Representative, each Collaboration Partner shall advise such Authorized Representative of the obligations set forth in this section and direct such Authorized Representative to treat such Confidential Information in accordance herewith (but shall, nonetheless remain responsible for any breach by such Authorized Representative).

29. Termination

In the event that any of the following circumstances arise prior to the term of the planned Investment Period, the [REDACTED] will notify the Designated Development Partner of its concerns and provide a reasonable period of time to address them: (a) the progress of the Project is such that the obligations undertaken by the Collaboration Partners are not reasonably likely to be satisfied in the opinion of the [REDACTED] (b) the Collaboration Partners disband prior to satisfying their obligations under this Investment Agreement; (c) the Collaboration Partners fail to meet any milestone or goal specified in this Investment Agreement without notifying the [REDACTED] in advance with explanation of such failure and receiving the [REDACTED] consent in writing to proceed with the Project; (d) significant changes occur in the leadership or control over, or other changes occur affecting, the Collaboration Partners, either individually or as a group, or the [REDACTED] which changes the [REDACTED] reasonably believes adversely affect the likely success of the Project; (e) the Project is discontinued due to negative outcomes; (f) the Project, the Designated Development Partner, or the Collaboration Partners, individually or collectively, fail to comply with any term or condition of this Investment Agreement; or (g) if any of bankruptcy, civil rehabilitation, corporate reorganization, insolvency, dissolution or any other similar event occurs with respect to the Designated Development Partner or any of the Collaboration Partners. If no resolution satisfactory to the [REDACTED] is reached within such reasonable period, or the [REDACTED] determines that the cause of its concerns cannot be remedied, the [REDACTED] may, in its sole discretion, immediately terminate, suspend, or withhold payment on the Investment. If the Designated Development Partner becomes aware of any fact that suggests that any of the circumstances described above in (a) through (f) have likely arisen, the Designated Development Partner shall inform the [REDACTED] of the same as soon as reasonably practicable.

On termination, at the request of the [REDACTED] the Designated Development Partner shall promptly deliver to the [REDACTED] any and all unspent and uncommitted portions of the Investment funds (as of the date of termination) previously distributed by the [REDACTED] for the Project, including any portions that have been distributed to a Collaboration Partner, except any amount that the [REDACTED] confirms in writing is not required to be returned to the [REDACTED] (such funds, "Remaining Funds"). Notwithstanding the foregoing, at the request of the [REDACTED] directly to a Collaboration Partner, such Collaboration Partner shall return any Remaining Funds directly to the [REDACTED]

Moreover, in the event that the Designated Development Partner, or the Collaboration Partners, individually or collectively, commit(s) a breach of a material obligation set out in this Investment Agreement, including, but not limited to, those related to the Use of the Investment, Reporting, Global Access Commitments, Political Activities, Anti-Terrorism, Anti-Corruption, Compliance with Applicable Law, Ethical Approval, and Marketing Materials, the Designated Development Partner shall immediately inform the [REDACTED] of the same. In any such event, the [REDACTED] may, in addition to the restitution of the Remaining Funds, require the Designated Development Partner to return to the [REDACTED] any and all spent and committed portions of the Investment Funds previously distributed by the [REDACTED] for the

Project (such funds, the “Spent and Committed Funds”), including any portions of the Spent and Committed Funds that have been distributed to a Collaboration Partner. Notwithstanding the foregoing, at the request of the [REDACTED] directly to a Collaboration Partner, such Collaboration Partner shall return any and all Spent and Committed Funds directly to the [REDACTED]

30. Survival

Each Collaboration Partner’s obligations under this Investment Agreement will be continuous and survive expiration or termination of this Investment Agreement as expressly provided in this Investment Agreement or otherwise required by law or intended by their nature (including without limitation Sections 3 (“Indemnification”), 4 (“Funding and Use of the Investment”), 5 (“Preservation of the Investment”), 7 (Political Activities) through 12 (“Insurance”), 18 (“Record Maintenance and Inspection”), 19 (“Audit Rights and Requests for Information”), 20 (“Evidences, Documents and Materials to be Maintained”), 23 (“Global Access”) and 25 (“Exclusion of Liability”) through 35 (“Miscellaneous”)).

31. Governing Law

This Investment Agreement will be governed by the laws of Japan without giving effect to its choice of law rules.

32. Choice of Forum

GHIT and the Collaboration Partners agree that the Tokyo District Court shall have the exclusive jurisdiction as the court of first instance over any controversy or claim arising out of or relating to this Investment Agreement or any breach thereof and each of the parties hereto hereby agrees to submit to the exclusive venue and personal jurisdiction of such court.

33. Assignment

No party hereto shall without the prior written consent of the other party assign, transfer, convey or declare a trust over this Investment Agreement or make any other disposition (whether in whole or in part, by operation of law or otherwise) of any of its rights and obligations hereunder to any third party. This Investment Agreement will bind and benefit any permitted successors and assigns.

34. Conflict of Interest

Each Collaboration Partner represents that it has conducted internal due diligence to confirm that it (including its directors or employees) has no actual, potential or perceived conflict of interest in accepting the Investment and performing its obligations under this Investment Agreement. If any of the Collaboration Partners becomes aware of the existence of its or any of its director’s, officer’s or employee’s financial interest or an affiliation or transaction with the [REDACTED] that may create a potential conflict of interest, such Collaboration Partner shall immediately disclose such conflict of interest and all material facts to the [REDACTED] with reasonable details.

35. Miscellaneous

This Investment Agreement is the entire agreement among the parties hereto and supersedes any prior oral or written agreements or communications between the [REDACTED] and the Collaboration Partners regarding its subject matter (including, for the avoidance of doubt, any previously issued award letters in connection with the Project).

This Investment Agreement may be executed in two or more counterparts, each of which shall be an original, but all of which together shall be one instrument. Counterparts may be delivered via facsimile, email (including pdf or electronic signature) or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, provided that the [REDACTED] may require the Designated Development Partner to deliver original signed documents.

The provisions of this Investment Agreement are such that if any provision is found to be invalid, illegal, or unenforceable, such finding shall not affect the validity, construction, or enforceability of any remaining provision. This Investment Agreement may be amended only by a mutual written agreement of the parties.

Please sign and return this Investment Agreement to the [REDACTED] at [REDACTED]. A signed original should be sent to [REDACTED], [REDACTED]. Please keep a copy for your records. If you have any questions, please contact the [REDACTED] at [REDACTED].

[Signature page to follow]